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Monthly Regulatory Impact Report

EU & German Sustainability Frameworks for Food Manufacturers

Reporting Period: February 2026
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Prepared for: Executive Leadership, Regulatory Affairs & Operations
Facilities: Hamburg & Rietberg, Federal Republic of Germany

CLASSIFICATION: CONFIDENTIAL — INTERNAL USE ONLY

Executive Summary

This Monthly Impact Report covers the regulatory developments directly affecting food manufacturing operations at the Hamburg and Rietberg facilities during February 2026. The convergence of new Hamburg municipal fee structures, the imminent finalization of the German Packaging Law Implementation Act (VerpackDG), and the retroactive abolition of LkSG reporting obligations creates a complex compliance environment demanding immediate operational recalibration.

The most significant financial impacts this month stem from the 3.3% increase in Hamburg industrial wastewater and utility fees (effective January 1, 2026, with first invoicing in February) and the new Extended Producer Responsibility (EPR) framework for B2B packaging under the draft VerpackDG, which introduces a levy of approximately €5 per tonne on transport and industrial packaging.

Technical Screening Summary (Change Log)

This section is generated from the monthly regulatory change log for **2026-02** (previous period: **2026-01**). It reports per-topic whether there was a change since last reporting and, if so, at which level.

Topic	Change Since Last	Level	# Changes
GHG	YES	Law passed	1
Packaging	NO	—	0
Water	YES	Change under discussion	1
Waste	NO	—	0
Social / Human Rights	NO	—	0

Table 1: Monthly technical screening status by topic (change log driven).

Change Log Entries (Top 20)

Topic	Regulation	Change Type	Status
Water	EU-Water-Framework	New regulation	Change under discussion
GHG	EU-CSRD-2022	Law passed	Law passed

Table 2: Extract of detected changes for this month (for full details use the JSON change log).

Monthly Impact Overview

Regulation	Status	Impact Level	Action Required
Hamburg Wastewater Fees	Effective Jan 1, 2026	HIGH — Direct OPEX	Audit Feb invoices; recalculate water efficiency ROI
NRW Circular Economy (NKWS)	Strategic Alignment	MEDIUM — Strategic	Engage EFA NRW for funding; prepare waste hierarchy audit
VerpackDG (B2B EPR)	Draft — Q1 Adoption Expected	CRITICAL — New Liability	Quantify B2B packaging tonnage; evaluate OfH membership
LkSG Reporting Abolition	Retroactive from Jan 2023	LOW — Admin Relief	Redirect resources to CSDDD/CSRD preparation

Table 3: Monthly regulatory impact summary for February 2026.

1. Hamburg Industrial Wastewater & Utility Fee Restructuring

EFFECTIVE — JAN 1, 2026

The Free and Hanseatic City of Hamburg has enacted significant adjustments to its municipal fee structures effective January 1, 2026, approved by the Senate in late 2025. These changes are driven by rising personnel and material costs within the Hamburger Stadtentwässerung (HSE) and broader sanitation services. For food manufacturers with wet processing operations in the region, these adjustments translate into immediate increases in operational expenditure (OPEX).

The *Schmutzwassergebühr* (foul water fee) and *Niederschlagswassergebühr* (rainwater fee) have both increased by approximately 3.3%. While this percentage may appear moderate in isolation, the compound effect on annual utility costs for high-volume industrial users is substantial. The fee calculation logic remains based on freshwater consumption volumes for wastewater and sealed surface area for rainwater.

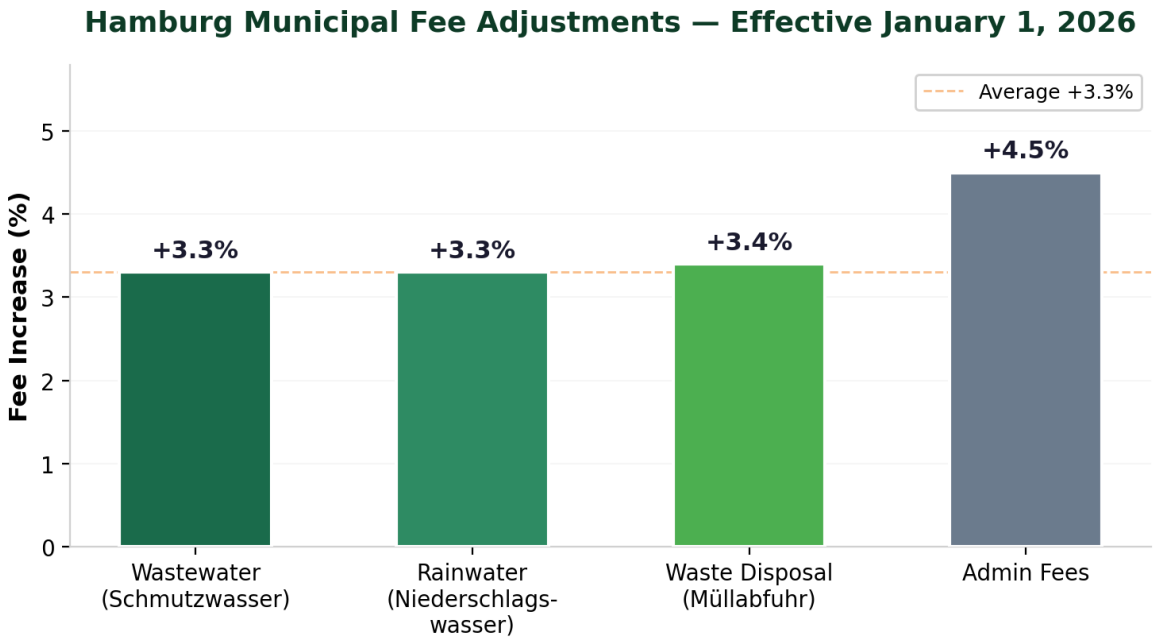

Figure 1: Hamburg municipal fee adjustments by category, effective January 2026.

1.1 Fee Adjustment Details

Fee Category	Adjustment	Mechanism	Operational Implication
Schmutzwasser (Wastewater)	+3.3%	Volumetric (freshwater intake)	Direct cost increase for washing, blanching, CIP processes
Niederschlagswasser (Rainwater)	+3.3%	Area-based (sealed surfaces)	Higher costs for warehouse roofs/lots; incentivizes green roofs
Waste Disposal (Müllabfuhr)	+3.4%	Volume/Frequency	Higher general facility waste costs; reinforces recycling
Administrative Fees	Varied	Per transaction	Significant increase in special permits (e.g., Zweckentfremdung)

Table 4: Detailed breakdown of Hamburg municipal fee adjustments.

■ Immediate Action Required

Facility managers in Hamburg must audit the February 2026 utility invoices. Verification should focus on the application of the new unit rates against metered volumes from January. The 3.3% increase alters the ROI calculus for water efficiency projects. Technologies such as membrane bioreactors (MBR) for wastewater recycling or condensate recovery systems, which may have been borderline viable in 2024, may now meet internal hurdle rates for CAPEX approval.

2. North Rhine-Westphalia (NRW) Circular Economy Implementation

STRATEGIC — ALIGNMENT PHASE

In Rietberg, the regulatory environment is heavily influenced by the NRW state government's aggressive implementation of the National Circular Economy Strategy (NKWS), adopted at the federal level in December 2024. NRW, as a densely populated industrial hub, is piloting several initiatives to decouple economic activity from resource consumption.

The NRW strategy specifically targets the food and beverage sector. Aligning with UN SDG 12.3, the state has committed to halving per capita food waste at retail and consumer levels by 2030, and significantly reducing food losses along production and supply chains. This is translating into stricter reporting requirements for industrial food waste. The emphasis is shifting from "safe disposal" to "highest value retention" — diverting food waste to biogas generation (energy recovery) is becoming the *minimum* standard, with nutrient recovery or animal feed production being the preferred tier.

> **✓ Strategic Opportunity**
>
> The Rietberg facility management should engage with the **Effizienz-Agentur NRW (EFA)** to identify potential funding for circularity projects. The "Circularity Made in Germany" seal, introduced with the NKWS, offers a reputational advantage for B2B suppliers. Additionally, the Federal Environment Agency is developing a "National Urban Mining Strategy" by 2026, and NRW is likely to offer matching grants for industrial symbiosis projects.

3. German Packaging Law Implementation Act (VerpackDG)

CRITICAL — ADOPTION IMMINENT Q1 2026

The most significant looming regulatory change is the finalization of the *Verpackungs-Durchführungsgesetz* (VerpackDG). This new act replaces the existing Packaging Act (VerpackG) and serves as the national execution vehicle for the EU PPWR. The draft introduces a **paradigm shift** for commercial and industrial packaging.

3.1 Expansion of EPR to B2B Packaging

Under the previous regime, manufacturers of transport packaging and industrial packaging (B2B) were required to register with the LUCID system but were largely exempt from financial participation obligations. The new draft mandates that manufacturers of non-system-participating packaging must now assume financial responsibility by either joining an authorized "Organisation for Producer Responsibility" (OfH) or establishing an approved individual take-back system.

3.2 Financial Impact Analysis

A new levy of approximately **€5 per tonne** is proposed for all packaging handled by EPR schemes or individual compliers, intended to fund waste prevention and reuse measures managed by the Central Agency (ZSVR). Additional service fees from OfH providers are estimated at €3 per tonne. The following chart illustrates the projected annual cost exposure by B2B packaging volume:

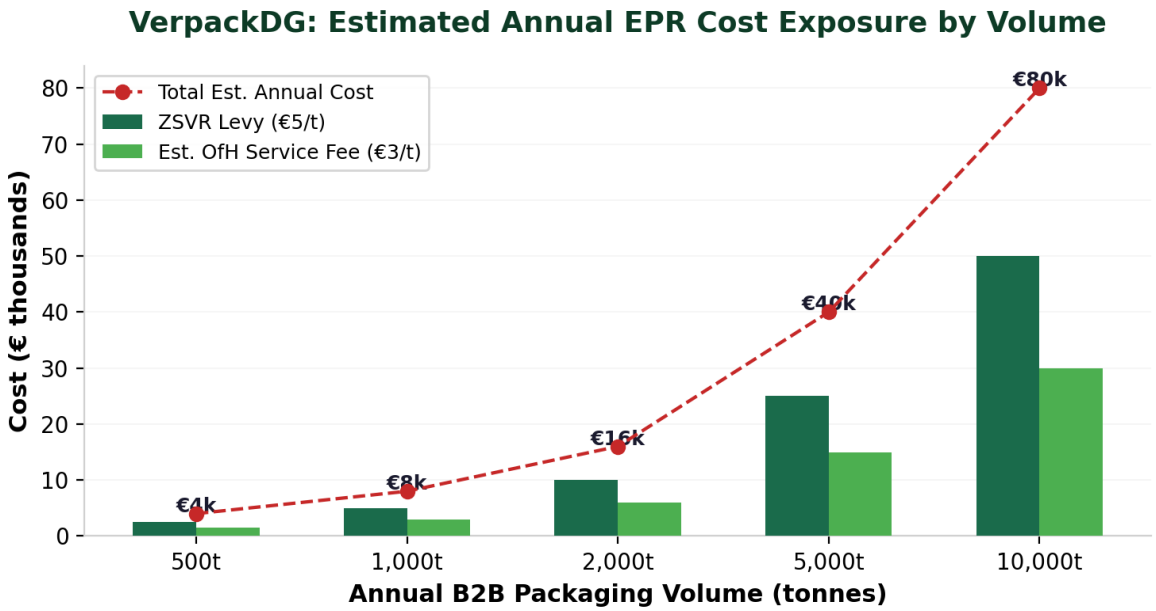

Figure 2: Estimated annual EPR cost exposure under VerpackDG by B2B packaging volume.

3.3 Recycling Targets for B2B Packaging Materials

Material Stream	2028 Target	2030 Target	Mechanical Only?
Plastics (B2B)	75%	80%	Mechanical baseline + chemical for gap

Material Stream	2028 Target	2030 Target	Mechanical Only?
Paper / Cardboard	85%	90%	Mechanical preferred
Metals (Steel / Aluminium)	80%	85%	N/A
Wood	30%	35%	N/A

Table 5: VerpackDG recycling targets for non-system-participating (B2B) packaging.

■ Immediate Action Required

Procurement and logistics teams must quantify the tonnage of transport packaging entering and leaving the Hamburg and Rietberg sites. The potential cost of €5/tonne plus OfH service fees represents a new logistics budget line item. Contracts with waste management providers (Remondis, Veolia, PreZero) must be reviewed to assess whether they are positioning as authorized OfH providers under the new framework.

4. Abolition of LkSG Reporting Obligations

ADMINISTRATIVE RELIEF — RETROACTIVE

The German Federal Cabinet passed a law amending the Supply Chain Due Diligence Act (LkSG), abolishing the reporting obligation under § 10 (2) LkSG with retroactive effect from January 1, 2023. Companies are no longer required to submit the annual report to BAFA.

■ Risk of Misinterpretation

Only the reporting obligation has been removed. The substantive obligations remain in full force: establishing a risk management system, conducting annual risk analyses, adopting a policy statement, and implementing preventive and remedial measures. BAFA retains authority to conduct risk-based controls and investigate complaints. Resources previously dedicated to BAFA report compilation should be redirected toward preparing for the EU CSDDD and CSRD.

4.1 LkSG vs. Upcoming CSDDD: Key Differences

Dimension	LkSG (Current)	CSDDD (Upcoming)
Scope	Direct suppliers + known indirect	Full value chain incl. downstream
Reporting	Abolished (retroactive)	Integrated with CSRD
Liability	Administrative fines	Civil liability (damages claims)
Threshold	≥ 1,000 employees	TBD (EU-level thresholds)
Climate Plan	Not required	Mandatory transition plan

Table 6: Comparison of German LkSG and upcoming EU CSDDD.

5. Single-Use Plastic Fund (EWKFondsG) — Data Collection Phase

ONGOING — 2026 DATA COLLECTION

The *Einwegkunststofffondsgesetz* (EWKFondsG) establishes a "plastic tax" mechanism in Germany covering the costs of cleaning up litter in public spaces. The system is live and the current period (2026) is the data collection phase for the 2026 reporting cycle. Data for FY 2024 must be reported by May 15, 2025, with payments due shortly thereafter.

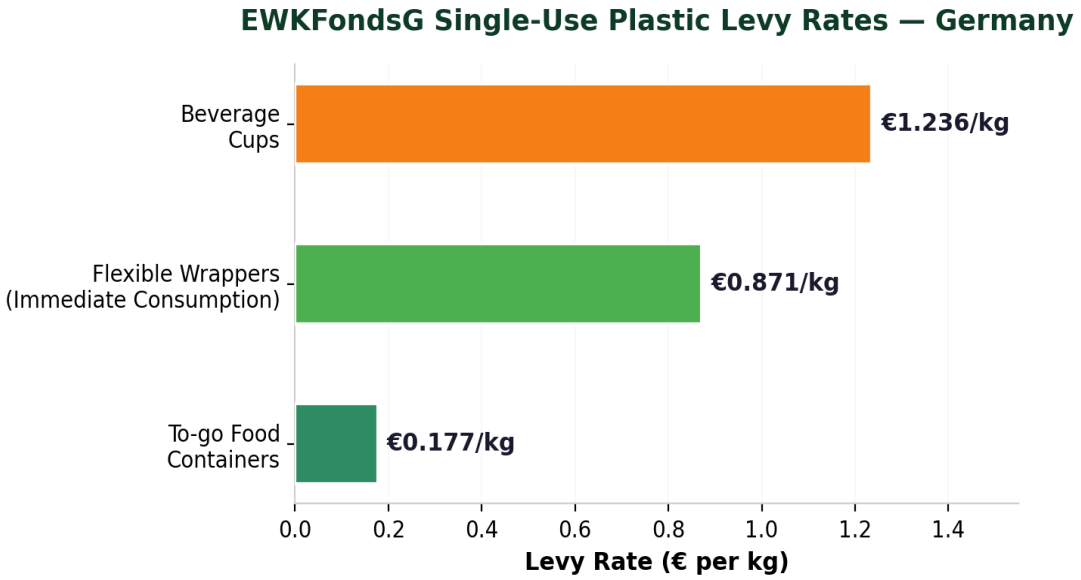

Figure 3: EWKFondsG single-use plastic levy rates by packaging category.

Classification Risk

The definition of "flexible material containing food intended for immediate consumption" is a frequent area of dispute. A wrapper for a chocolate bar is included; a wrapper for a multipack may not be. Accurate classification in the ERP system is essential to avoid overpayment or penalties for under-reporting.

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The following sources underpin the analysis in this report. All URLs were accessed on February 1, 2026.

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Disclaimer: This report is based on regulatory data and legislative drafts available as of February 1, 2026. Legislative texts, particularly the German VerpackDG and the national implementation of CSRD, are subject to parliamentary amendment prior to final adoption. This document does not constitute legal advice.

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